

HOUSE No. 1492

The Commonwealth of Massachusetts

PRESENTED BY:

David F. DeCoste

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act expanding the definition of affordable housing to include manufactured homes.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/16/2025</i>

HOUSE No. 1492

By Representative DeCoste of Norwell, a petition (accompanied by bill, House, No. 1492) of David F. DeCoste relative to expanding the definition of affordable housing to include manufactured homes. Housing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1313 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act expanding the definition of affordable housing to include manufactured homes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 20 of chapter 40B of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the definition of “Low or moderate income
3 housing” and inserting in place thereof the following definition:-

4 “Low or moderate income housing”, any housing subsidized by the federal or state
5 government under any program to assist the construction of low or moderate income housing as
6 defined in the applicable federal or state statute, whether built or operated by any public agency
7 or any nonprofit or limited dividend organization. The term low or moderate-income housing
8 shall include 50 per cent of the homes in a manufactured housing community, as defined by
9 section 32Q of chapter 140, which shall be included toward the city or town’s affordable housing

threshold as documented on the subsidized housing inventory maintained by the department of housing and community development.

SECTION 2. Chapter 40B of the General Laws, as so appearing, is hereby amended by adding the following section:-

Section 31. Affordable Housing Deed Restriction Exemption

Notwithstanding any general or special law to the contrary, no affordable housing unit in the inventory of a municipality shall be subject to a deed restriction. This provision shall apply to all affordable housing units, including but not limited to, manufactured homes as defined in section 32Q of chapter 140.